

Court No. - 9

Case :- WRIT - C No. - 63253 of 2009

Petitioner :- Kishan Bahadur

Respondent :- Electricity Distribution Division P.V.V.Nigam Ltd. & Ors.

Petitioner Counsel :- Gopal Misra, Amit Rana

Respondent Counsel :- C.S.C., Pankaj Kr. Shukla

Hon'ble Vijay Manohar Sahai, J.

Hon'ble Yogesh Chandra Gupta, J.

We have heard learned counsel for the petitioner, Shri Pankaj Kumar Shukla, learned counsel appearing for respondents no. 1 and 2 and learned standing counsel appearing for respondents no.3 and 4. They are allowed one month time to file counter affidavit. Three weeks thereafter is allowed to the petitioner for filing rejoinder affidavit.

List thereafter.

Learned counsel for the petitioner has urged that an F.I.R. was lodged against the petitioner with regard to the theft of electricity. The petitioner has been acquitted by the order dated 10.2.2004 passed by Chief Judicial Magistrate, Bijnore. He has urged that in view of the Electricity Supply Code 2005 8.2 (h) where the theft could not be established by the power corporation against the consumer then the assessment made by the respondents against the petitioner shall be withdrawn. In this view of the matter the petitioner is entitled for interim order.

Until further orders of this court, the recovery proceedings initiated against the petitioner in pursuance of the recovery citation dated 17.11.2009, passed by respondent no.4, annexure-5 to the writ petition shall remain stayed.

Order Date :- 25.11.2009

vs

Court No. - 1

Case :- WRIT - C No. - 63253 of 2009

Petitioner :- Kishan Bahadur

Respondent :- Electricity Distribution Division P.V.V.Nigam Ltd. And Ors.

Counsel for Petitioner :- Gopal Misra, Amit Rana

Counsel for Respondent :- C.S.C., Pankaj Kr. Shukla

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

The matter is taken up after recess but even on repeated calls no one is present on behalf of the either of the parties. Sri A. K. Singh, learned Standing Counsel appearing on behalf of the State is present.

List positively after two weeks.

Order Date :- 9.9.2019

Nitin Verma

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Court No. - 1

Case :- WRIT - C No. - 63253 of 2009

Petitioner :- Kishan Bahadur

Respondent :- Electricity Distribution Division P.V.V.Nigam Ltd. And Ors.

Counsel for Petitioner :- Gopal Misra, Amit Rana

Counsel for Respondent :- C.S.C., Pankaj Kr. Shukla

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Sri Amit Rana, learned counsel for the petitioner has sent illness slip.

Sri Nipendra Mishra, learned counsel for the respondent-Power Corporation and Dr. D. K. Tiwari, learned Additional Chief Standing Counsel are present.

List the matter peremptorily in the next cause list.

Order Date :- 20.9.2019

Nitin Verma

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Court No. - 1

Case :- WRIT - C No. - 63253 of 2009

Petitioner :- Kishan Bahadur

Respondent :- Electricity Distribution Division P.V.V.Nigam Ltd. And Ors.

Counsel for Petitioner :- Gopal Misra, Amit Rana

Counsel for Respondent :- C.S.C., Pankaj Kr. Shukla

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

The matter has been listed peremptorily today.

None appeared on behalf of the petitioner to press the writ petition.

The writ petition is dismissed for want of prosecution.

Interim order, if any, stands discharged.

Order Date :- 27.9.2019

Nadeem Ahmad

(Ajit Kumar, J.) (Ramesh Sinha, J.)